

might be several pages long. Look for provisions that seem unfair; they may be illegal. In some states, for example, a landlord can't include clauses banning water beds or demanding excessive penalties for late rent. To find out the rules in your area, call your state or county housing office or office of consumer affairs. These government agencies may be able to provide you with brochures or websites that answer your questions about tenants' rights.

Also, look for clauses that, although legal, may be a pain.

Try to negotiate them out of the lease *before* you sign.

Examples are provisions that give your landlord the right to enter your apartment without your permission or the right to raise your rent if his taxes or operating costs increase. Watch out for sections that say no one but you can live in the apartment. Look out for bans on pets; although you might not have one now, you might want to get one in the future. And think twice before agreeing to any unreasonable stipulation the landlord may have added to the standard lease agreement. I know of one couple in San Francisco who had to agree to wash their landlord's plants every week with soap and water! That meant that they couldn't go away for more than a week without getting someone to take over this ridiculous chore.

- **Negotiate with the real estate broker if you're dealing with one.** In most cities, if you use a broker to help you find an apartment to rent, you don't pay him or her a commission. But in a major city like New York, renters are often expected to pay brokers as much as 15% of the year's rent to secure a place. If possible, try to avoid dealing with brokers by searching sites like www.craigslist.org and www.apartments.com, or going through newspaper ads for apartments rented out directly by owners or an onsite leasing office. If you must use a broker, explain up front that you're a serious customer but are willing to pay a commission of only, say, 10%. If you hunt around, you may find a broker willing to cut a deal.